What a standard specifies about people

A clause-level reading of prEN 18229-3 (human oversight) and prEN 18228 (AI risk management)

Diana Turkina
16 October 2026 · Version 1.1

The European draft standard on human oversight is careful about what the overseer does. It logs their interventions, confirms their actions, rolls back what they undo. Whether the overseer can do the job is settled once, before the system ships, with people who need not be the ones later assigned. After that, the question is not asked again.

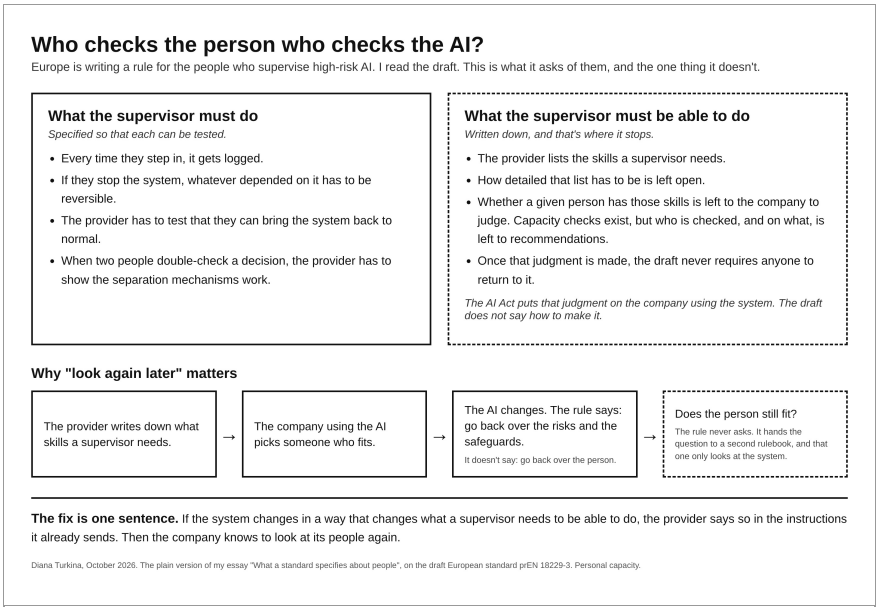


Figure 1. Plain-language summary of the essay.

Abstract. This essay analyses two enquiry drafts of European standards, prEN 18229-3 and prEN 18228, for what they specify about the people who oversee a high-risk AI system. Draft EU standard prEN 18229-3 specifies what a provider must build, test and document for the human overseer of a high-risk AI system. It requires verification that designated persons can perform key oversight tasks, but that verification is a pre-market provider test, recorded under 6.2 f), whose participants need not be the deployer's later assignees, and I found no check on the person assigned and no clause that requires a recheck after a system change. I read prEN 18229-3 clause by clause during its public enquiry and prEN 18228 afterwards, from a licensed copy. In 5.8, a provider must file test results showing that its account-separation mechanisms work, but need only define minimum competence and training requirements for the reviewers. In 5.2.6, a review of oversight assignments is triggered when design modification or post-market analysis alters the identified risks or the required oversight measures, but does not cover the person assigned, and it refers to prEN 18228 Clause 11, which does not review the competence of assigned people. I found no requirement that reviews the deployer's designated person after a system change. In the clauses I read, no provider quality requirement covers that person. I propose one sentence for prEN 18229-3. This is a record of observations made in a personal capacity on two enquiry drafts. It does not report the outcome of the working group's comment resolution.

Keywords. human oversight; AI Act Article 14; harmonised standards; competence assurance; competence reassessment; deployer; prEN 18229-3; prEN 18228.

Subject. Computers and society. Document analysis. Not peer reviewed.

Quotation practice. Draft European standards are licensed documents, free to read only during the enquiry window. This essay cites clauses by number and title, paraphrases their requirements, and quotes at most a few words at a time, for the purpose of comment and analysis.

Capacity. Written in a personal capacity. No employer affiliation or endorsement. This document is not the position of any standards body or committee. The analysis builds on a study of five frontier safety frameworks and two compliance filings, deposited at SSRN (abstract 7248205), with its coding sheet and term-search log at doi.org/10.5281/zenodo.22075225, CC BY 4.0 [12, 13].

Cite as. Turkina, D. (2026). What a standard specifies about people. Version 1.1. Zenodo, doi.org/10.5281/zenodo.23428887.

1 · Question and contributions

The question: what do the two drafts specify about the people assigned to oversee an AI system, and what do they leave out?

1. A clause-level reading showing that the drafts specify in detail what the overseer does, and, in the clauses I read, require no check of the individual assigned and no recheck after a change.
2. Two clauses where the specification stops: 5.8 of prEN 18229-3, and 5.2.6 of prEN 18229-3 with its referral to prEN 18228, Clause 11.
3. One proposed sentence for prEN 18229-3, which would require the provider to record, before each modified release, whether the change affects its declared competencies, and to flag it if so, without asking it to assess a deployer’s staff.

2 · Method

Corpus. The public enquiry drafts of prEN 18229-3 [1] and prEN 18228 [2]. I read prEN 18229-3 during its enquiry, which closed on 22 September 2026. I obtained prEN 18228 on 8 September 2026 as a licensed copy, after its enquiry had closed on 30 June 2026, so I submitted no comments on it. Both are drafted under standardisation request M/593 as amended by M/613 [4] in support of the AI Act [3].

Procedure. I read each draft clause by clause and submitted sixteen comments on prEN 18229-3 in the enquiry format. Four are reproduced in the Appendix. I submitted them through the national enquiry portal. Comment resolution is not visible to the commenter, and I do not know the status of mine, so this document records what the drafts said at that date and what I proposed.

Term search. A whole-text search of both drafts as supplied, table of contents, annexes and notes included, case-insensitive, on the terms in Table 2. A whole-word term counts occurrences of the word. A stem counts every inflection. The list has four groups: the word competence in each of its spellings, a control term (training), words for the overseer’s state (automation bias, fatigue, vigilance, workload, sustainability), and the terms that signal a requirement to recheck a person’s capacity (reassessment, recertification, refresher, proficiency, requalification, revalidation).

Limits. Counts depend on the PDF text layer. The search joins words split by a line-end hyphen and, for the zero-count terms, also matches spaced and hyphenated forms.

3 · The draft specifies what people do

prEN 18229-3 [1] is the part of the European AI standards family that covers human oversight. Drafted under the standardisation request supporting the AI Act, it is meant to tell providers of high-risk systems what Article 14 [3] requires of them in practice. For Annex III systems the Act applies those requirements from 2 December 2027.

The draft is precise about what human beings do. It specifies, in detail, what the designated person (the deployer's staff member to whom oversight of the system is assigned) does, using the same test-and-document approach it applies to the system.

At 5.7.2, 5.7.3 and 5.7.4 it requires the system to log the designated person's interventions, to confirm certain actions, and to roll back dependent processes. Those are requirements about a person's actions, written to the standard applied to machine behaviour. Each is testable. At 5.7.5 d) it requires the provider to test that the procedure for returning to normal operation is executable by the designated person. At 5.3.2.3.1 and 5.3.4.4 it requires verification that designated persons can identify hazardous outputs and perform key oversight tasks, with acceptance criteria and results documented in the technical documentation (6.2 e) and f)). At 5.3.4.4 the tasks verified, the people tested and the conditions are left to recommendations, not to the requirement (comment 9 in the Appendix).

Other provisions address the designated person's capacity: the overload demonstration at 5.2.5 (6.2 d)) and the competency declarations at 5.4.1 b) 5) and 5.6.1. The declarations record competence at one point in time. The only mention I found of capacity over time, at 5.3.2.3.2, offers verification of the sustainability of retrospective oversight as an option.

4 · Two exhibits

Table 1. The two exhibits

Clause	What the draft requires	What it leaves open
5.8	The provider files test results showing that the account-separation mechanisms work	Minimum competence and training requirements need only be defined, and the listed competencies are recommended
5.2.6	A review of oversight assignments, triggered when design modification or post-market analysis alters the identified risks or the required oversight measures	Does not cover the person assigned. Refers to prEN 18228 Clause 11, which does not review the competence of assigned people

4.1 Manual review under 5.8

The first instance is in 5.8, which governs manual review in remote biometric identification systems: a person confirms or rejects a match before it takes effect. Under Article 43(1) [3] a provider that has applied the harmonised standards is allowed to choose internal control. A notified body is required where it has not applied them, or only in part. The standard's content therefore decides what is checked. Article 14(5) of the Act already requires the two reviewers to have "the necessary

competence, training and authority", so the criterion comes from the Act. Article 14(5) excepts law enforcement, migration, border control and asylum systems where Union or national law treats it as disproportionate.

5.8.3, titled *Manual reviewer independence mechanisms*, specifies independence as four measures: individual credentials for each reviewer, prevention of a single account completing both reviews, blinding of the second reviewer to the first result (when configured for sequential review), and separate recording of each review action. Those four measures establish that two separate accounts performed the reviews. In this subclause, independence means separate accounts. 5.8.4, titled *Documentation requirements*, then requires the technical documentation to carry the implemented mechanisms and test results demonstrating that they function as specified.

5.8.5 specifies what the provider states about manual reviewers. Its lead-in requires the provider to define and document minimum competence and training requirements in the instructions for use. Item a) then lists three recommended competencies. The provider lists them without a test or evidence. The lead-in of 5.4.1 separately requires, for each deployer-implemented measure, a verification method the deployer applies, and b) 6) requires guidance on those methods. They test the measure, not the person.

So within one document and one subclause tree, the draft treats one property of a reviewer as something to be demonstrated and another as something to be stated. Both bear on whether the second review adds a real check.

An assessor checks a declaration for presence and consistency, and a test result for method, criteria and outcome. Within 5.8 it was not possible to find a competence test required of the reviewer.

The draft refers to other documents for reviewer competence. A NOTE to 5.8.5 refers to ISO/IEC 9868 for recommendations on manual review processes and operator competence. A NOTE is informative, and Annex ZA confers a presumption of conformity only for the normative clauses listed in its Table ZA.1. 5.8.5 also refers to prEN 18229-2, 6.1.2.4.3, for the content of the declaration, which I have not read. Comment 13 in the Appendix observes that the four independence mechanisms are access controls and say nothing about a reviewer's interest in the outcome.

4.2 Review of assignments does not review the assignee

Article 26(2) of the Act [3] places the duty to assign oversight to persons with the necessary competence, training and authority on the deployer, and Article 4, as amended in July 2026, asks provider and deployer alike to take measures supporting the AI literacy of their staff. A provider standard imposes no duties on the deployer's staff. It affects them only through what the provider declares, tests and trains for. The text does not show whether the committee left this question to ISO/IEC 9868, to deployer-side guidance, or to no one. The text I read does not say that the declaration of competencies in the instructions for use (5.6.1), the main way the provider informs the deployer on this question, changes when the system changes.

5.2.6 is titled *Review of oversight assignments*. It requires the provider to review the risk scenarios, the reaction timeframes and the selected measures when post-market analysis or design modification alters the identified risks or their required oversight measures. It does not require

review of the assignment itself: whether the person assigned still meets the competencies the provider declared. The introduction of prEN 18229-3 places the design, verification and modification of the oversight measures, and monitoring of their effectiveness after market placement, under the provider's quality management system, EN 18286:2026. I did not read that standard.

Those competencies are declared under 5.6.1, in the instructions for use, in accordance with prEN 18229-2, 6.1.2.4.3, which I have not read. Comment 15 in the Appendix, written without that subclause, proposes that the declaration be sufficient for a deployer to determine, before assignment, whether an individual meets it. It was not possible to find anything in the draft that says when that determination stops holding. A design modification that triggers review under 5.2.6 sometimes invalidates that determination, and it was not possible to find a clause that assigns anyone to notice.

5.2.6 refers the review to prEN 18228 [2], Clause 11, titled *Risk management review*. That clause reviews the execution of the risk management plan. It checks three things: that the plan has been implemented, that the overall residual risk is acceptable, and that methods are in place to collect pre-market and post-market information. A serious incident, or a near-miss identified from post-market monitoring or real-world testing, triggers a decision on whether to review. A decision not to review must be justified. Clause 11 does not list the competence of assigned personnel among its checks. One reading holds that the residual-risk check covers that competence implicitly, since acceptable risk presumes working oversight. The clause does not say so and names no check on the people. 12.4 a) 1) requires the provider to determine whether reassessment of risks is necessary, and Figure B.1 draws that loop, dotted, from Clause 12, pre-market and post-market activities, back to the start of risk assessment. 18228 does have a competence requirement, at 4.3: persons performing risk management activities, in practice the provider's own staff, shall be competent on the basis of education, training, skills and experience. 4.2.1 a) asks top management to provide resources to maintain that competence but names no check that it has been maintained, and Clause 11 assigns the review to persons with appropriate competence. Both address the provider's own staff.

For the provider's own staff the missing recheck costs little. Their competence is a quality management matter. Article 17 requires the provider to run a quality management system, and quality management practice (ISO 9001 and ISO/IEC 42001, clause 7.2 in each) requires competence to be determined, evaluated, recorded and kept current. For the deployer's designated person I found no equivalent to that quality-system competence duty. prEN 18228 6.2.3 n) lists the skills and experience of deployers as a system characteristic to assess, and 9.1.2 requires the provider, where applicable, to define training for deployers considering their competence. Those provisions do not require anyone to check an assigned person's competence again after a change. In the clauses I read, no provider quality requirement covers that person, and the draft does not govern the deployer. The provider informs the deployer about competencies through a declaration written by the provider and read by the deployer. Clause 11 does not review it.

5 · Comparison and term counts

In September 2026 two proposals appeared for new human oversight functions at the frontier. They concern external evaluators of AI developers, not deployer-side designated persons, so they are an analogy. Dario Amodei proposed independent evaluators embedded inside AI developers with employee-like access [5]. A joint statement published by the Dutch government on 22 September, with 22 signatories on that day, among them the Dutch Prime Minister and the President of the European Commission, called for qualified evaluators to be granted sufficient access to assess risks [6]. In their published text, both are specific about what those people would be given: access, independence, the right to report. The drafts specify the equivalent for people: individual credentials, account separation, logging, confirmation and rollback. Amodei lists the tasks his evaluators would perform. Both texts leave open how anyone establishes that the evaluators are qualified, now or later.

A capacity needs a measurement method. A requirement that a person detect errors needs a method to test whether the person does. Such methods exist. Signal detection measures for error detection, vigilance paradigms, human reliability assessment in functional safety practice, recurrent proficiency checks in aviation and operator requalification in nuclear power are established in research and regulatory practice [7]–[11]. In the literature I searched I found no adaptation of these methods to the review of AI output, and the draft cites none. Where it does borrow, at 5.3.4.5, it takes the metric names, time to intervention, misinterpretation rate and cognitive workload, and leaves the thresholds as a recommendation. *Automation bias* appears thirteen times and is treated mainly as a condition to be engineered through design measures at 5.5.1. 5.8.5 a) 3) also lists awareness of it as a recommended reviewer competency. The stem *competenc* appears ten times, as *competence* (three) and *competency* or *competencies* (seven). *Competent* does not appear, and training appears twelve times. The draft also uses fatigue (twice), vigilance (once), workload (five times) and sustainability (once). Those words describe the overseer’s state during a task and the design of the system, not whether a finding of competence still holds. *Reassessment*, *recertification*, *refresher* and *proficiency* appear zero times, and so do requalification and revalidation. Those terms are the usual vocabulary for rechecking a person’s capacity in aviation and nuclear practice [10], [11]. Their absence shows the draft does not use that vocabulary. It does not show the draft has no idea of a recheck. In prEN 18228, *recertification*, *refresher* and *proficiency* also appear zero times, and the stem *reassess* appears three times, each time about risks and never about people.

Table 2. Term counts in the two enquiry drafts

Term	Search string	Match	prEN 18229-3	prEN 18228
automation bias	automation bias	phrase	13	1
competence, competences, competency, competencies	competenc	stem	10	9
competence	competence	whole word	3	8
competency, competencies	competency, competencies	whole word	7	0
competent	competent	whole word	0	3
training	training	whole word	12	12
fatigue	fatigue	whole word	2	1
vigilance	vigilance	whole word	1	0
workload	workload	whole word	5	0
sustainability	sustainab	stem	1	0
reassessment	re-?assess	stem	0	3
recertification	recertif	stem	0	0
refresher	refresh	stem	0	0
proficiency	proficien	stem	0	0
requalification	requalif	stem	0	0
revalidation	revalid	stem	0	0

Stems also catch inflections (reassess catches reassessed, reassessing and re-assessment). The whole-word count for competence in prEN 18228 omits one occurrence of competences. The three hits for reassess in prEN 18228 are at 5 a), 12.4 a) 1) and 12.4 b) 3), all about risks.

6 · A proposed sentence

One sentence in prEN 18229-3 would tell the deployer when the declared competencies have changed.

Comment 16 in the Appendix proposed a sentence for 5.2.6 that turned on whether a modification would invalidate a prior determination that a designated person meets the declared competencies. This asks the provider to reason about a determination it never made and does not see, and a statement gets checked for presence, not for truth. A display change that leaves the risk assessment unchanged would also never trigger 5.2.6. This essay proposes a standalone sentence that requires a recorded basis and applies to each modified release. It would belong in 5.2.6 or in the instructions-for-use subclause, as the working group chooses. Comment 16, submitted on the last day of the enquiry, carried the earlier wording. The sentence below was not part of any comment.

“Before releasing a modified version of the AI system, the provider shall record in the technical documentation whether the modification changes any of the competencies declared under 5.6.1, naming the items affected, the element changed and the comparison on which the determination rests, and where it does, shall issue revised instructions for use to the deployer.”

NOTE. Examples of modified elements are the interface, output presentation, confidence display, thresholds and task allocation.

Article 13(3)(d) of the Act requires a description of the human oversight measures in the instructions for use [3]. Article 13(3)(c) covers changes the provider pre-determined at the initial conformity assessment. Both are silent on flagging a change that affects the competencies the oversight measures assume, and on recording why the provider concluded that none does. The sentence adds those duties. The provider records a pre-determined change once, with its effect on the declared competencies. Where a modification is substantial, Article 43(4) also requires a new conformity assessment, and the sentence applies to each modified release.

For example, an update changes how the system displays its confidence in a match, and reviewers were trained on the old display. The provider records that the display element changed, names the 5.6.1 items that assume the old display, and issues revised instructions for use. The deployer then re-briefs its reviewers before they use the new version. The sentence does not make the provider test anyone. If the declaration stays generic, the provider will record every time that no declared competency changed, and the record then gives an assessor a rationale and a release log to test. The sentence therefore depends on comment 15, or on whatever prEN 18229-2, 6.1.2.4.3 already requires of the declaration.

I propose no sentence for prEN 18228, whose competence requirement covers the provider’s own staff (4.3). The missing requirement concerns the deployer’s side, which the sentence above addresses.

The drafts specify no measurement of the assigned person’s competence after assignment. A separate record format for deployers exists: a competence matrix with the criterion and the date it was fixed, and a round register completed before the round runs (supervisory-capacity-assessment [14], CC BY 4.0).

7 · Limitations

One reader, one enquiry draft of each standard, sixteen comments. I submitted no comments on prEN 18228, which I read after its enquiry had closed. I had no access to the committee’s reasoning or to other commenters’ submissions, and later drafts will differ from these. One reader made all clause readings and counts, with no second coder. I did not read prEN 18229-2, EN 18286:2026 or ISO/IEC 9868. The sentence in section 6 covers change events. It does not address gradual decay of reviewer performance in routine use, and I found no validated recheck test for reviewers of AI output. The claims about the two September proposals rest on their published text.

References

[1] prEN 18229-3, human oversight, public enquiry draft, enquiry closed 22 September 2026.

[2] prEN 18228, AI risk management, enquiry draft (enquiry closed 30 June 2026), licensed copy obtained 8 September 2026.

[3] Regulation (EU) 2024/1689 (AI Act), as amended by Regulation (EU) 2026/1744 (Digital Omnibus on AI), Articles 4, 13, 14, 17, 26(2), 40 and 43.

[4] Standardisation request M/593 as amended by M/613, in support of Regulation (EU) 2024/1689.

[5] Dario Amodei, “We Must Pace the Frontier”, 12 September 2026, darioamodei.com/post/we-must-pace-the-frontier.

[6] “A Call for Control of Frontier AI Models”, diplomatic statement, 22 September 2026, published by the Netherlands Ministry of General Affairs, government.nl/documents/2026/09/22/a-call-for-control-of-frontier-ai-models. 22 signatories at publication, including Rob Jetten, Prime Minister of the Netherlands, and Ursula von der Leyen, President of the European Commission. The statement remained open to further signatories.

[7] Green, D. M. and Swets, J. A. (1966), *Signal Detection Theory and Psychophysics*, Wiley.

[8] Mackworth, N. H. (1948), “The breakdown of vigilance during prolonged visual search”, *Quarterly Journal of Experimental Psychology* 1(1), 6–21.

[9] IEC 61508 series; Kirwan, B. (1994), *A Guide to Practical Human Reliability Assessment*, Taylor & Francis.

[10] Commission Regulation (EU) No 1178/2011, Annex I (Part-FCL), FCL.740, proficiency checks for the revalidation of ratings.

[11] US NRC, 10 CFR Part 55, Subpart F, § 55.59, requalification of licensed operators.

[12] Turkina, D. (2026). The Unmonitored Dependency: Human Supervisory Capacity as an Assurance Target in Frontier AI Safety Frameworks. SSRN abstract 7248205, doi.org/10.2139/ssrn.7248205; also at alphaxiv.org/abs/2609.frontier-ai-human-supervisory-capacity.

[13] Coding sheet and term-search log of [12]: doi.org/10.5281/zenodo.22075225 (CC BY 4.0).

[14] Turkina, D., supervisory-capacity-assessment, release v1.0.0 (2026): record formats and a browser document builder for the deployer side. github.com/dturkina99/supervisory-capacity-assessment, CC BY 4.0.

[15] CEN-CENELEC, webinar on harmonised standards, 6 July 2021, experts.cen.eu: general sequence of consultant assessment, offering of references to the Commission and citation.

[16] CEN-CENELEC, “Update on CEN and CENELEC’s Decision to Accelerate the Development of Standards for Artificial Intelligence”, 23 October 2025, cencenelec.eu/news-events/news/2025/brief-news/2025-10-23/.

Notes

Terms. The provider places the AI system on the market. The deployer uses it. The designated person is the natural person to whom oversight of the system is assigned, in practice a member of the deployer’s staff. The instructions for use are the provider’s document to the deployer. The technical documentation is the provider’s evidence for conformity assessment. 6.2 of the draft lists what goes in it. Conformity with a harmonised standard is presumed conformity with the requirement of the AI Act it covers, here Article 14, so once the standard is cited in the Official Journal, a provider that follows it is presumed to meet the Article within the standard’s scope (Article 40(1) [3]). A point the standard omits falls outside the presumption.

Comments. Sixteen comments on prEN 18229-3 written during its enquiry, the last (comment 16, on 5.2.6) on 22 September 2026. Comments 9 (5.3.4.4), 13 (5.8.5), 15 (5.6.1) and 16 (5.2.6) are the ones this essay draws on directly and are reproduced in the Appendix. The full set is held by the author.

Recurrence. The evidence comes in three tiers. Five frontier safety frameworks and two compliance filings were coded in the SSRN paper [12] and show no operative competence measurement. Two European standards drafts, read here, show a related pattern, in the clauses I read, of a different kind: capacity verifications whose scope is left to recommendations in one, competence to be maintained but no check that it is, in the other. Two September 2026 proposals [5, 6], read in their published text, specify evaluators by access and not by capacity.

Status of this document. Version 1.1, 16 October 2026, doi.org/10.5281/zenodo.23428887. Version 1.0 appeared on 12 October 2026, doi.org/10.5281/zenodo.23311590. Self-published as a record of observations made during the enquiry. The working group resolves comments. Under an exceptional and

temporary measure of October 2025, a positive Enquiry vote allows direct publication without a separate Formal Vote [16]. The Commission's consultants for harmonised standards assess the texts, including the mapping of clauses to Act requirements in Annex ZA, at the enquiry stage and again before any Formal Vote under the standard route [15]. [16] does not say when assessment takes place under direct publication. After publication, CEN offers the reference to the Commission, which assesses it and cites it in the Official Journal if it passes. This step rests on [15] alone. I will update this note if the published standard addresses either point.

Licence. CC BY 4.0. The text of the draft standards is not reproduced here and remains under the licence of the issuing bodies.

Appendix · Four comments

Each comment is given with its clause reference, comment text and proposed change, as written.

Comment 9 · 5.3.4.4, the paragraph

Comment. The verification and its acceptance criteria are mandatory and the results are documented under 6.2 f), but three terms on which the requirement depends are not determined. "The key oversight tasks" has no antecedent; 5.3.4.5 a) refers to "a predefined oversight task" without stating who predefines it. "Designated persons" is defined at 3.4.3 by ascribed role and carries no further qualification here; the qualifier "representative" appears only in 5.3.4.5, which is a recommendation, and is not defined. The acceptance criteria have no metric set specified at requirement level: the metrics are listed in 5.3.4.5, where the provider is recommended, not required, to define acceptance thresholds for them, and the two subclauses use different terms ("criteria", "thresholds") without stating their relationship. 5.7.5 a) provides a model, testing against a response time defined in the risk management file. As drafted, the scope, population and pass condition of a mandatory verification are all set outside the requirement, and the result documented under 6.2 f) cannot be assessed for conformity.

Proposed change. Add at the end of 5.3.4.4: "The provider shall determine and record the oversight tasks subject to verification, the persons participating in the verification and the conditions under which it is performed. The acceptance criteria shall be defined over the metrics listed in 5.3.4.5. The tasks, participants and conditions recorded form part of the verification results documented in accordance with 6.2 f)."

Note on comment 9. The draft also uses the word "representative" at 5.3.2.3.2 and 5.5.2 b). The comment is reproduced as submitted.

Comment 13 · 5.8.5, item a)

Comment. 5.8.3 is titled "Manual reviewer independence mechanisms" and specifies four measures, all of which are access controls: individual credentials, prevention of a single account completing both reviews, blinding of the second reviewer, and separate recording of each review action. They establish that two distinct authenticated accounts performed the reviews. 5.8.5 specifies what the provider states about manual reviewers, and item a) lists three competencies, none concerning independence. No provision in the document states a condition on a reviewer's interest in the outcome of an identification or relationship to its subject; the NOTE to 5.8.5 refers to ISO/IEC 9868:2025 for recommendations on manual review processes and operator competence, but that reference is informative. The NOTE to 5.8.2.4 contemplates that manual reviewers may not reach the same assessment and leaves the resolution to a documented policy, while no provision states a condition under which a differing assessment is more likely to arise.

Proposed change. Add to 5.8.5, after item a) 3): "4) absence of any interest in the outcome of the identification, and of any relationship to its subject, that could affect the reviewer's assessment." Renumber the subsequent item accordingly.

Comment 15 · 5.6.1, third paragraph

Comment. The third paragraph provides that the competencies presumed of designated persons for output interpretation shall be those declared in the instructions for use, without stating what the declaration must contain. A declaration in general terms satisfies the requirement as drafted while conveying nothing a

deployer can apply to a specific individual. Comparable specification duties elsewhere in the document state their required content: 5.4.1 b) 4) defines performance criteria as measurable indicators or success criteria; 5.3.2.1 lists the data elements the review interface shall contain; 5.4.3 d) requires a specification sufficient for the deployer to act on without further information from the provider. The competencies presumed under this subclause are stated without any corresponding content requirement.

Proposed change. In 5.6.1, third paragraph, add: “The declaration shall be sufficient for the deployer to determine, before assignment, whether an individual meets the declared competencies.”

Comment 16 · 5.2.6, the paragraph

Comment. 5.2.6 is titled “Review of oversight assignments” and requires review of the risk scenarios, reaction timeframes and selected measures when post-market analysis or design modifications alter the identified risks or their required oversight measures. It does not require review of the assignment itself: whether the designated person still meets the competencies declared in accordance with 5.6.1. 5.6.1 makes those competencies a matter declared in the instructions for use, and a separate comment on 5.6.1 proposes that the declaration be sufficient for the deployer to determine, before assignment, whether an individual meets them. Neither clause states when that determination stops holding. The same design modifications that trigger review under 5.2.6 can invalidate it. 5.2.6 performs the review in accordance with prEN 18228:—, Clause 11. That review takes information about the AI system as its input; the competence of assigned personnel is not among its inputs and cannot trigger it. The gap therefore falls between the two documents rather than being resolved by the referral. This does not require the provider to assess the deployer’s personnel. It requires the provider to state which of its own modifications invalidate a prior determination, which only the provider is positioned to know.

Proposed change. Add to 5.2.6: “Where a design modification or post-market analysis requiring review under this subclause would invalidate a prior determination that a designated person meets the competencies declared in accordance with 5.6.1, the provider shall identify that change in the instructions for use.”